



**SOLE SOURCE JUSTIFICATION: SIMPLIFIED PROCEDURES FOR CERTAIN
COMMERCIAL ITEMS EXCEEDING SAT, INCLUDING BRAND NAME**

J&A-25-0006

In accordance with the procedures of FAR Subpart 13.5, using the statutory authority of 41 USC 1901, and consistent with the content requirements of FAR 6.303-2, this justification is based on the following facts and rationale:

1. Agency and Contracting Activity.

The Department of Homeland Security, U.S. Immigration and Customs Enforcement, Office of Acquisition Management, proposes to enter into contract on behalf of Enforcement and Removal Operations (ERO) on a basis other than full and open competition to support Executive Order (EO) 14159, Protecting the American People Against Invasion, and Proclamation 1088, Declaring a National Emergency at the Southern Border, both signed by the President on January 20, 2025.

2. Nature and/or description of the action being approved.

(a) Type of action: Firm-fixed price purchase order

(b) Amount the current J&A is justifying: \$4,977,720.00

(c) Brief Description: OAQ intends to procure, on a sole source basis, unarmed guards services using simplified acquisition procedures. The vendor listed below is the only company that can provide the required services for a seamless and efficient transition to the new awardee.

Deployed Resources LLC
164 McPike Rd.
Rome, NY 13441-4241

3. Description of Supplies/Services. Describe the supplies or services to be acquired. Provide the estimated total value (including options, if any).

This requirement is to continue to unarmed guard services at the Enhanced Hardened Facility (EHF) in El Paso, TX for 30 days with at a cost of [REDACTED] with one one-month option [REDACTED] for a total contract value of \$4,977,720.00. These services are required for security at the EHF which is supporting the national emergency and continued need to house aliens to meet overall removal requirements as defined by the administration and executive orders pertaining to the detention and removal of illegal aliens.

4. Identification of the authority.

This action is being taken under the authority of Simplified Procedures for Commercial Items, 41 U.S.C. 1901 or the authority of 41 U.S.C. 1903 Special emergency authority as implemented by FAR 13.501.



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5. Demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

On January 20, 2025, President Trump issued a series of Executive Orders (EOs) related to border security, including the "Declaring of a National Emergency at the Southern Border of the United States," "Securing Our Borders," and "Protecting the American People Against Invasion." These EOs direct DHS to, among other things, take all appropriate actions to detain, to the fullest extent permitted by law, aliens apprehended for violations of immigration law until their successful removal from the United States. Also, on January 29, 2025, the President signed the Laken Riley Act, Public Law 119- 1, into effect requiring ICE to, among other things, detain certain aliens who have been arrested for burglary, theft, larceny, or shoplifting. This law creates a new category of aliens who are considered a public safety risk and would previously not have been detained by ICE. Accordingly, ICE has been tasked with adding [REDACTED] to accommodate increased arrests within the interior of the United States in furtherance of the Executive Orders, bringing ICE's [REDACTED].

As part of its immigration enforcement mission, ICE ERO maintains a network of detention facilities throughout the United States to house aliens placed in removal proceedings and for those awaiting removal from the United States. ICE strives to maintain sufficient bedspace to support its own law enforcement activities, including the arrests of aliens with criminal histories from prisons and jails and aliens at-large that pose threats to national security and public safety in the interior of the United States, and to accommodate fluctuating alien referrals from U.S. Customs and Border Protection (CBP). ICE is currently funded for 41,500 beds per day across [REDACTED] nationwide that are a mixture of ICE-owned, privately-owned, and state and local facilities. [REDACTED]. ICE currently needs to obtain increased bed capacity and detention guard support to meet the administration's interior enforcement and border decompression goals— [REDACTED].

In recent years many jurisdictions started refusing to work with ICE due to what jurisdictions view as burdensome detention standards and arduous oversight and inspections processes. Nearly 17 different entities have authority to inspect ICE facilities. Additionally, several jurisdictions have passed ordinances barring local governments from working with ICE. Since FY 2022, over 100 detention facilities have exited ICE's detention network, causing a significant drop in available bed capacity. ICE has also been subject to litigation and court-ordered facility- specific population caps and intake bans, further decimating ICE's detention bed capacity. The above referenced executive orders and legislation require a default to detention for most aliens apprehended along the southern border, as well as interior arrests, which necessitates ICE expand bed capacity immediately.

ICE is critically short on available bedspace [REDACTED]. Nonetheless, ICE is procuring additional beds through intergovernmental service agreements with jurisdictions willing to work with ICE and expanding its use of [REDACTED] to meet its bed capacity needs. However, many jurisdictions continue to refuse to cooperate with ICE. Therefore, ICE is increasingly reliant on alternative ways to meet detention space needs.



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Customs and Border Protection currently has a temporary soft-sided facility at the Enhanced Hardened Facility (EHF) in El Paso, TX. ERO and Department of Defense (DoD) have decided to utilize this facility in the short-term to increase bed space capability in support of the mission at the border. The operation of the facility is currently contracted to Deployed Resources by CBP. This contract will end on 03/29/2025. [REDACTED]

Deployed Resources is currently providing unarmed guard services at the EHF under the CBP contract. The agency's minimum needs described above can only be satisfied by Deployed Resources as they have the existing capability to continually provide guard support for EHF immediately. This is because they are the contractor that currently manages the entire facility. No other contractor can immediately provide this support because contracting with another entity would involve several lengthy efforts before support could be rendered. For example, awarding to another contractor would necessitate a new competitive award process, another transition process, and additional vetting processes to onboard new staff. Deployed Resources has already completed their transition process and can immediately continue to provide support at the facility which has aliens in it currently. Additionally, their staff have already been vetted and onboarded through CBP's vetting process which can quickly be cleared through ICE's personnel security process. Therefore, Deployed Resources is the only vendor that can immediately provide these services.

Further, should ICE elect to utilize an alternate vendor, the support would be stalled while the new contractor completes their transition process and onboards staff. A gap in service would be harmful to the Government because these services are critical to meeting the ICE mission of detaining, caring for, and removing aliens. Any lapse would cause irreparable damage by disrupting detention services and continuity of operations directly targeted towards upholding America's immigration laws. All of the above are unacceptable outcomes. As stated above, Deployed Resources is fully staffed for this requirement and can immediately meet the need which will mitigate all of the risks described above. The above-referenced EOs further highlight the urgent need to acquire additional detention beds supporting both detection and removal operations.

Based on the above, no other source is capable of satisfying the Agency's immediate minimum needs. As such, it is in the best interest of the Government to obtain the required support from Deployed Resources.

6. Description of efforts made to ensure that offers are solicited from as many potential sources as is practicable.

☒ OAQ intends to make this justification available pursuant to 6.305 on sam.gov 14 days after contract award.



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7. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

The contracting officer determines that the anticipated price will be fair and reasonable based on comparison to the current contract providing these services as well as similar contracts nearby for similar services provided to the Government.

8. Description of market research.

ICE continuously conducts market research (including during the past 18 months) to assess available detention capacity and guard services across the United States to support ERO's detention and removal mission. OAQ has issued numerous requests for information (RFI's) to support detention operations. ERO HQ and field office locations assess the national and geographic detention requirements for current facilities to support ICE. The location identified above, and all services provided at the facility, the subject of this action, was selected by ERO/DHS/DoD to provide detention capacity in the specific geographic area of the southwest border which is of critical operational importance to ICE.

The facility identified represents a location that meets the immediate needs of ICE to support the detention and removal directive from the administration. Given the critical need of security services, given the population and security requirements, no other vendor has been identified for this short-term effort that would meet the Government's requirements in a short timeframe. ICE continues to review all potential contract types and facilities, including existing facilities being utilized by other DHS components or other government entities (e.g., DoD, state and local facilities, jails and locations for soft or hard sided facilities).

9. Any other facts supporting the justification.

Not applicable.

10. A listing of the sources, if any that expressed, in writing, an interest in the acquisition.

This requirement was synopsized on SAM.gov. As of the now, , the government has not received information from any sources that have expressed, in writing, an interest in the acquisition.

11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for supplies or services required.

Since the requirement is needed immediately, the Government had to take action immediately because any delay of award could result in serious injury as discussed to the Government.



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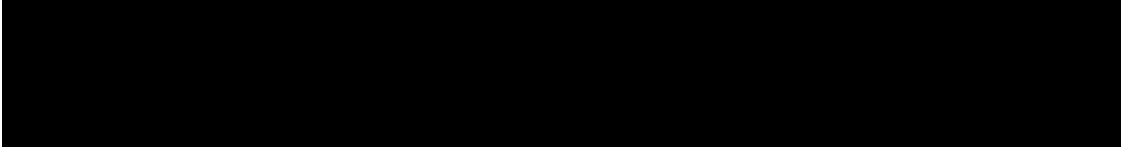
**12. DHS intends to post the requirement pursuant to FAR 13.501(a)(1)(iii) and 6.305(a) or
for brand name FAR 13.501(a)(1)(iv) and 5.102(a)(6).**



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13. Technical/Requirements Personnel Certification.

I certify this requirement meets the Government's minimum need and that the supporting data, which forms a basis for this justification, is complete and accurate.



Technical Representative/COR

14. Contracting Officer's Certification.

I certify that the data supporting the recommended use of other than full and open competition is accurate and complete to the best of my knowledge and belief.

BRITTANY M TOBIAS

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TOBIAS

Date: 2025.03.28 16:08:34 -04'00'

Brittany Tobias
Contracting Officer

Date

15. Approval.

MELANIE ALSTON

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Date: 2025.03.28 17:02:00 -04'00'

Melanie Alston
Competition Advocate

Date